606 CMR 7.00: STANDARDS FOR THE LICENSURE OR APPROVAL OF FAMILY CHILD CARE; SMALL GROUP AND SCHOOL AGE AND LARGE GROUP AND SCHOOL AGE CHILD CARE PROGRAMS

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7.01: Introduction

In 2005 the Massachusetts General Court created the Department of Early Education and Care (EEC), which became operational July 1, 2005. Responsible to an independent Board of Early Education and Care, EEC combines the functions of the former Office of Child Care Services (OCCS) and the former Early Learning Services Unit at the Department of Education. EEC is responsible for the licensing of early education and care programs and for providing financial assistance for child care services to low-income families, information and referral services, parenting support for all families, and professional development opportunities for staff in the early education and care field. The mission of the Massachusetts Department of Early Education and Care is to provide the foundation that supports all children in their development as lifelong learners and contributing members of the community, and to support families in their essential work as parents and caregivers. In fulfilling this mission, EEC has developed specific regulations to be met by all providers of early care and education services in the Commonwealth, whether home, school or center-based.

In developing these standards EEC has sought to build on the strengths of the existing systems of licensing and program quality, put children and families first, and be flexible and accountable. Further, EEC has sought to establish standards that support high quality early education and care programs that reflect the diversity of the Commonwealth; strengthen families; and help children learn and grow physically, socially, emotionally, and educationally.

Unless specifically noted in 606 CMR 7.00, all requirements in 606 CMR 7.00 apply to all programs providing non-residential services to children younger than 14 years old outside their own homes, regardless of the care setting or the age of the children served.

7.02: Definitions

As used in 606 CMR 7.00, the following words shall have the following meaning unless the context otherwise requires:

Applicant - The individual who has been designated as the person responsible for the administration of the program or facility and is the duly authorized agent of the person applying for licensure or approval.

Approved Activity Space - The indoor and outdoor areas determined by the Department to be safe and appropriate for children in an early education and care program. This space shall include only usable floor space exclusive of hallways, bathrooms, and portions of rooms or areas that contain furniture or equipment suitable only for adult use.

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Approved Private Elementary School - A program that has documentation of approval by the local education authority pursuant to M.G.L. c. 76, § 1.

Certified Assistant - A person who holds a certified assistant certificate issued by the Department; who, at minimum, meets the qualifications of a provider licensed to care for six children; and who works with or substitutes for the licensee in a family child care home, depending on his/her level of qualification.

Child - Any person younger than14 years old, or 16 years old with special needs.

Child Care Center - Any facility operated on a regular basis whether known as a day nursery, nursery school, kindergarten, child play school, progressive school, child development center, day care center, pre-school, or known under any other name which receives children, not of common parentage, younger than seven years old, or younger than 16 years old if such children have special needs, for non-residential custody and care during part or all of the day separate from their parent(s). Child Care center shall not include: any part of a public school system; any part of a private organized educational system, unless the services of such a system are primarily limited to kindergarten, nursery or related pre-school services; a Sunday school conducted by a religious institution; a facility operated by a religious organization where children are cared for during short periods of time while persons responsible for such children are attending religious services; a family child care home; an informal cooperative arrangement among neighbors or relatives; or the occasional care of children with or without compensation therefore.

Children with Special Needs - Children younger than 16 years old, who, because of temporary or permanent disabilities arising from intellectual, sensory, emotional, physical or environmental factors, or other specific learning disabilities, are or would be unable to progress effectively in a regular school program. This may include, but not be limited to, a school age child with disabilities as determined by an evaluation conducted pursuant to M.G.L. c. 71B, § 3, and as defined by the Department of Education in 603 CMR 28.00, or an infant or toddler with an individual family service plan (IFSP) receiving early intervention services.

Continuing Education Unit (CEU) - A nationally recognized method for recognizing participation in professional development and training activities. One CEU is granted for each ten hours of instruction. CEUs must be approved by organizations designated by the Department.

Curriculum - The topics within the areas of English language arts, mathematics, science and technology/engineering, history and social science, comprehensive health, and the arts that will be addressed through planned and unplanned program activities.

Day - Shall mean calendar days unless otherwise specified in 606 CMR 7.00.

DEP - Department of Environmental Protection.

Department - When used alone shall mean the Department of Early Education and Care.

Diverse Learners - Children who have special physical, emotional, behavioral, cognitive or linguistic needs or whose primary learning modality is visual, auditory, tactile or kinesthetic, who may require an adaptation in the environment, interaction or curriculum in order to succeed in their program.

DPH - Department of Public Health.

Educator - Any person approved by the Department for the regular care and education of children unrelated to the educator in a location outside the children's own home for all or part of the day, regardless of his/her level of certification.

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EEC - The Department of Early Education and Care.

Evening Care - Child care provided between the hours of 8:00 P.M. and 11:30 P.M.

Family Child Care - Temporary custody and care provided in a private residence during part or all of the day for no more than ten children younger than 14 years old or children younger than 16 years old if such children have special needs. Family child care shall not mean an informal cooperative arrangement among neighbors or relatives, or the occasional care of children with or without compensation therefore.

Family Child Care System - Any entity or person who, through contractual arrangement, provides to family child care homes that it has approved as members of said system, central administrative functions including, but not limited to, training of operators of family child care homes; technical assistance and consultation to operators of family child care homes; inspection, supervision, monitoring, and evaluation of family child care homes; referral of children to available family child care homes; and referral of children to available health and social services, provided, however, that family child care system shall not mean a placement agency or a child care center.

Fixed Age Group - A group of children within the same age range, such as infants, toddlers, preschoolers, kindergarten, and school age.

Group - Two or more children who participate in the same activities at the same time and are assigned to the same educator for supervision, at the same time.

Half Day Program - A program that operates four or fewer hours per day, or a program in which no child attends more than four hours per day.

Health Care Consultant - A Massachusetts licensed physician, registered nurse, nurse practitioner or physician's assistant with pediatric or family health training and/or experience.

Health Care Practitioner - A physician, physician's assistant or nurse practitioner.

Household Member - Any person other than the educator who resides in the family child care home for 30 consecutive days or more.

Infant - A child who is younger than 15 months old.

Kindergarten Child - A child who is five years old or who will attend first grade the following year in a public or private school.

Large Group and School Age Child Care - Any program that receives on a regular basis more than ten children who are unrelated to their caregivers and are younger than 14 years old, or 16 years, if such children have special needs, during all or part of the day for non-residential care and education outside their own homes. Such programs shall include, but not be limited to, those commonly known as child care centers, day care centers, preschools, nursery schools, child development programs, school age child care programs and before and after school programs, regardless of their location. Such programs shall not include any part of a public school system; any part of a private organized educational system, unless the services of such a system are primarily limited to kindergarten, nursery or related pre-school services; any part of a program operated by an organized educational system for the children enrolled in that particular system, unless the services of such system are primarily limited to a school age child care program; Sunday schools or classes for religious instruction conducted by a religious institution; a facility operated by a religious organization where children are cared for during short periods of time while persons responsible for such children are attending religious services; an informal cooperative arrangement among neighbors or relatives; or the occasional care of children with or without compensation therefore.

7.02: continued

Licensed Capacity - Determination by the Department of the number of children that a program can care for at any one time under 606 CMR 7.00.

Licensee - Any person holding a license or approval issued by the Department.

Medical Emergency - An unforeseen event that results in the family child care educator, a child in care, spouse, parent, or household member of the family child care educator needing immediate medical or mental health treatment.

Mixed Age Group - A group of children within two consecutive age groups, such as Infant/ Toddler, Toddler/Preschool, Preschool/School Age or Kindergarten/School Age.

Multi-age Grouping - Ten or fewer children from birth through 13 years (or 16 years, if such children have special needs) assigned to a single group.

Occasional Overnight Care - Child care provided between the hours of 11:30 P.M. and 6:00 A.M. that is not provided on a regular basis.

Older School Age Child - A child at least nine years old.

Parent - Father or mother, guardian, or person or agency legally authorized to act on behalf of the child in place of, or in conjunction with, the father, mother, or guardian.

Premises - The private residence or the facility that is licensed for the early care and education of children, and the approved outdoor space on which the residence or facility is located.

Preschooler/Preschool Child - Any child at least two years and nine months old but not yet attending first grade.

Private Residence - A dwelling that is occupied for living purposes so long as the dwelling is the occupant's full-time legal residence, and contains the facilities necessary for sleeping, eating, cooking, and family living.

Professional Development - Ongoing education or training designed to increase an educator's skills or knowledge or assist the educator in gaining new competencies in his or her profession or in a field closely related to his or her profession. Professional development may fulfill the annual number of hours required by regulation to maintain a license, registration or credential, and/or may result in college credit or CEUs that lead to career advancement.

Program - Any family child care home, small group and school age or large group and school age child care program.

Program Staff - Anyone employed by or working with the child care program who may have contact with children.

Regular Assistant - A person who holds a regular assistant certificate issued by the Department; does not meet the qualifications of the licensee for whom they are working; and who may replace a licensee or certified assistant on a limited basis in a family child care home as allowed under 606 CMR 7.09(15)(c)2.a.

Regular Overnight Care - Care provided to any child care child between the hours of 11:30 P.M. and 6:00 A.M. more than one day per week for more than eight weeks in a 12-month period.

Relative - A person who is a parent, grandparent, great grandparent, aunt, uncle, great aunt, great uncle or sibling by blood, marriage or adoption.

School Age Child - A kindergarten child, or a child who is attending a public or approved private elementary school.

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Small Group and School Age Child Care - Any program that receives on a regular basis ten or fewer children who are unrelated to their caregivers and are younger than 14 years old, or 16 years, if such children have special needs, during all or part of the day for non-residential care and education outside their own homes, when such services are not provided in a private residence. Such programs shall include, but not be limited to, those commonly known as child care centers, preschools, nursery schools, child development programs, school age child care programs and before and after school programs. Such programs shall not include any part of a public school system; any part of a private organized educational system, unless the services of such a system are primarily limited to kindergarten, nursery or related pre-school services; a Sunday school conducted by a religious institution; a facility operated by a religious organization where children are cared for during short periods of time while persons responsible for such children are attending religious services; a family child care home; an informal cooperative arrangement among neighbors or relatives; or the occasional care of children with or without compensation therefore.

Standard Precautions - Infection control guidelines (per the Center for Disease Control) designed to protect individuals from exposure to diseases spread by blood and certain body fluids. Health precautions include, but are not limited to, the use of personal protective equipment, proper disposal containers for contaminated waste, hand washing and proper handling of bodily waste.

Toddler - A child who is at least 15 months of age, but younger than 33 months old.

Unsupervised Contact with Children - Any contact with children in an EEC licensed and/or funded program when no other Background Record Check cleared person is directly present.

Use Zone - The surface under and around a piece of equipment onto which a child falling from or exiting from the equipment would be expected to land.

Volunteer - Any person who assists in an unpaid capacity on a regular basis in an EEC licensed or funded program.

7.03: Licensure and Approval

The following requirements apply to all programs, including family child care, small group and school age and large group and school age child care. Additional requirements specific to family child care are found at 606 CMR 7.03(5). Additional requirements specific to small group and school age child care are found at 606 CMR 7.03(6). Additional requirements specific to large group and school age child care are found at 606 CMR 7.03(6) and (7).

(1) Application for Licensure. In order to provide all children "a fair and full opportunity to reach their full potential," the Department has developed specific requirements for programs to be licensed. The licensee bears ultimate responsibility for compliance with 606 CMR 7.00. The Department may issue a child care license provided that:

(a) in the opinion of the Department, the services offered by the program are adequate to protect the health and safety of the children;

(b) within one year prior to licensure the licensee (or his or her designee) has attended an orientation to early education and care approved by the Department; and

(c) the applicant submits a completed application on a form provided by the Department, the required license application fee and the following documents:

1. evidence of the applicant's compliance with the requirements of 102 CMR 1.05(1);
2. upon request of the Department evidence that program activities support and engage children through specific learning experiences, as required by 606 CMR 7.06(1)(b);
3. documentation of all inspections, as required by 606 CMR 7.07(2) through (5) and 7.12(15)(b) and (c), as applicable;
4. a copy of the written information for parents, as required by 606 CMR 7.08(6);
5. forms to record information required to be maintained in children's records, as required by 606 CMR 7.04(7);
6. evidence of compliance with St. 1983, c. 233, Revenue Enforcement and Protection Program (REAP) on a tax certification form provided by the Department;

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7. if the program uses volunteers, a plan for their use that includes:
   a. appropriate orientation, supervision and training
   b. documentation of the dates, hours of service and responsibilities of each volunteer used by the program;
   c. a provision that volunteers must be under the direct visual supervision of an EEC qualified educator at all times; and
   d. provisions for compliance with EEC Background Record Check regulations regarding volunteers.

(2) Licensed Capacity. Programs will be licensed for the maximum number of children who may be in the care of educators at any one time, taking into consideration the size and layout of the physical facility, the number and qualifications of educators, the equipment and resources available to the children, the individual needs and characteristics of the children served, and the building certificate capacity, if applicable. At no time shall a program admit, supervise or provide care for more than the maximum number of children indicated on the license.

(3) Renewal. In preparing for renewal of a license, certificate or letter of approval the licensee or person holding the certificate or letter of approval must file a written application for renewal on forms provided by the Department and pay any required application fee not less than 30 days before the date of expiration of the current license, certificate, or letter of approval. Provided that the application for renewal is filed timely, the license, certificate or letter of approval will remain in effect until the Department makes a final determination on the application. In addition, the applicant must:

(a) participate in a license renewal meeting approved by the Department, and

(b) review all of the written plans and documents required by 606 CMR 7.00 and submit copies of:

1. any of the required written plans or documents that have been revised during the licensing period;
2. current inspection certificates required by 606 CMR 7.00; and
3. any document required by 606 CMR 7.00 if requested by the Department.

(4) Pilot or Demonstration Projects and Variances.

(a) Proposals for pilot or demonstration projects for the innovative delivery of services related to a program will be considered by the Department upon written request. However, no project shall be implemented without prior written approval of the Department. The Department may require that specific proposals include an evaluation component to determine the effectiveness of the project and may also consider any other evidence relevant to the proposal prior to granting approval. Projects shall be implemented only on an experimental basis for a specified period not to exceed the term of the license. If the Department receives or finds evidence that the conditions of the approval have been violated, the project will be terminated.

(b) Standard Variances. The Department may, upon written request, grant a variance of any provision contained in 606 CMR 7.04 through 7.13 and allow an alternative method for compliance with such regulation if the applicant for the variance provides clear and convincing evidence, including, at the request of the Department, expert opinion which demonstrates to the satisfaction of the Department that the applicant's alternative method will comply with the intent of the regulation for which a variance is requested. The Department may consider any other evidence relevant to the request for a variance. Such variances may be granted, in writing, for a specified period of time not to exceed the term of the license. If the Department receives or finds evidence that the conditions of the variance have been violated, the variance will be rescinded.

(c) Variances During State of Emergency. Should the Department find that a State of Emergency affecting the provision of the essential functions of government has been declared by the state and/or Federal entity with the authority to do so, the Department, in its sole discretion, may, on its own initiative, issue a written, electronic or broadcast variance regarding expected compliance with any or all of the regulatory requirements set forth in 606 CMR 7.00 or any or all other regulations governing the Department of Early Education and Care. The Department, through policy and technical assistance, will offer guidance to the extent allowed by the nature of the emergency, regarding regulatory compliance during such emergencies and their aftermath.

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(5) Additional Requirements for Family Child Care.

(a) Documents Required for Licensure. In addition to the documents required for licensure specified at 606 CMR 7.03(1)(c), the Licensee must submit:

1. copies of the lead paint disclosure statement required by 606 CMR 7.07(15)(a)2;
2. certification of current training in CPR and first aid, per 606 CMR 7.09(15)(e);
3. health records, as evidence of compliance with 606 CMR 7.09(11).

(b) Duration of a License. A regular license or approval is valid for three years from the date of issuance unless revoked, suspended, or made probationary.

(c) Determining Capacity. The following children will be considered to be in the care of educators:

1. every child who lives in the family child care home who is younger than a school age child;
2. every child who lives in the family child care home who is home schooled, regardless of age;
3. every child younger than ten years old who lives in the residence and is present for more than three consecutive hours on each of five consecutive days, excluding weekends and holidays;
4. every person younger than 14 years old who does not live in the residence and is present during the time that child care is being provided;
5. during overnight care, every person younger than 18 years old who is present in the home.

(d) License Status. A Licensee who voluntarily ceases or suspends providing care while remaining licensed may elect inactive status. To become inactive, a licensee must notify the Department that care has ceased, and must return to the Department the license. Child care may resume after the licensee has requested that the Department return the license and has indicated to the satisfaction of the Department that the child care home is in compliance with all relevant EEC licensing regulations. While the license is inactive, the Department will not include the licensee on its roster of active educators. The acceptance by the Department of inactive status shall not limit the Department's authority to investigate compliance with EEC licensing regulations nor to take adverse action against the license as appropriate, pursuant to 102 CMR 1.00, 606 CMR 7.00, and 606 CMR 14.00.

(e) Location of Care. For the purposes of 606 CMR 7.00, family child care may only be provided in a dwelling that provides complete independent living facilities for one or more persons including permanent provisions for living, sleeping, eating, cooking, and sanitation. In addition, the dwelling must:

1. be occupied for living purposes on a full time basis by either the licensee, or an individual personally known to the licensee, as the occupant's legal residence; or
2. be unoccupied and be:
   a. located physically on the same property as the licensee's permanent residence and such residence is a single family home; or
   b. located in a duplex structure containing two independent side-by-side dwelling units and the licensee permanently resides in the other dwelling unit located in the duplex; or
   c. located in a structure with a maximum of three stories, with no more than one dwelling unit located on each floor level, and the licensee permanently resides in one of the other dwelling units located in the three story structure.

(f) A family child care licensee may not hold more than one family child care license.

(6) Additional Requirements for Small Group and School Age and Large Group and School Age Child Care Programs.

(a) Application for Licensure. In addition to the provisions of 606 CMR 7.03(1)(c), the applicant must submit:

1. evidence of authority to operate, including the names and addresses of all owners or, in corporations, the Officers, as required by 606 CMR 7.04(17)(b);
2. evidence of the ability to provide appropriate supervision of children and staff/child ratios, as required by 606 CMR 7.10(1) and (2) and staff schedules, as required by 606 CMR 7.10(8)(b);
3. the written plan for staff orientation, as required by 606 CMR 7.09(17)(a)2.;
4. the written plan for staff supervision, as required by 606 CMR 7.09(17)(b);
5. evidence of a lead paint inspection as required by 606 CMR 7.07(16)(a);

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6. a plan for diapering and toileting, as required by 606 CMR 7.11(18)(c)1.;
7. a copy of the program's enrollment procedures and non-discrimination statement, as required by 606 CMR 7.04(17)(g);
8. evidence of the ability to provide an administrative designee, as required by 606 CMR 7.04(17)(m);
9. a plan for the use of student interns, if applicable, as required by 606 CMR 7.04(17)(j);
10. a written plan for staff meetings, if applicable, as required by 606 CMR 7.04(17)(k);
11. personnel policies, if applicable, as required by 606 CMR 7.04(17)(l); and
12. the written plan for referral services, as required by 606 CMR 7.04(17)(h);
13. the written plan to avoid the suspension and termination of a child, as required by 606 CMR 7.04(17)(i).

(b) Duration of the License.

1. Provisional License. The Department may issue a provisional license to a program that has not previously operated, or that has not complied with or is unable to comply with all applicable regulations provided that care give in the program is adequate to protect the health and safety of the children. A provisional license is valid for six months from the date of issuance unless revoked, suspended or made probationary. The provisional license may be renewed once for no more than six additional months.
2. Regular License. A regular license or approval is valid for two years from the date of issuance unless revoked, suspended, or made probationary.
3. Summer Camp Programs.
   a. A program that obtains a summer camp permit from the Department of Public Health for operation at its licensed facility may be issued a school-year-only license if it provides to the Department a copy of its summer camp permit.
   b. A program that relocates to an off-site summer camp during part of the program day is subject to 606 CMR 7.00 during the hours that children are located at the licensed facility.

(7) Additional Requirements for Large Group and School Age Child Care Programs. In addition to the written documents required for licensure specified by 606 CMR 7.03(1)(c) and 7.03(6), the applicant must submit:

(a) Background Record Check policies;
(b) financial documentation, as required by 606 CMR 7.04(18)(a);
(c) a copy of the health care policy, as required by 606 CMR 7.11(19)(a);
(d) procedures for transition of a child, as required by 606 CMR 7.04(18)(b);

7.04: Administration

The following requirements apply to all programs, including family child care, small group and school age and large group and school age child care. Additional requirements specific to family child care are found at 606 CMR 7.04(16). Additional requirements specific to small group and school age child care are found at 606 CMR 7.04(17). Additional requirements specific to large group and school age child care are found at 606 CMR 7.04(17) and (18).

(1) The licensee must ensure that the program is soundly administered by qualified persons designated with specific administrative and program responsibilities. The licensee may admit children only in accordance with the provisions of the license.

(2) Unauthorized Activities.

(a) The licensee must not allow children to participate in any activities unrelated to the direct care of children without the written, informed consent of the parent(s). "Activities" shall mean, but not be limited to:
   1. fund raising;
   2. publicity, including photographs and participation in the mass media, and
   3. screening, research or unusual treatment.

(b) The licensee must not allow any person to produce or distribute a likeness of any child in the program for any purpose without the written informed consent of the child's parent.

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(3) Transitions.

(a) Whenever children are preparing to transition to a new classroom or program, the educator must:

1. collaborate and share information between each classroom or program, with parental permission; and
2. assist the child with the transition in a manner consistent with the child's ability to understand.

(b) If a program chooses to suspend or terminate a child for any reason the program must provide written documentation to the parents of the specific reasons for the proposed suspension or termination of the child, and the circumstances under which the child may return, if any.

(4) Record Requirements.

(a) The licensee must maintain complete and accurate accounts, books and all records required by 606 CMR 7.00, including but not limited to:

1. daily attendance records indicating each child's attendance, including arrival and departure times;
2. a method of knowing exactly who is present on the premises at any given point in the day.
3. documentation of regular evacuation drills, as required by 606 CMR 7.11(7)(h).

(b) Except as specifically provided elsewhere in 606 CMR 7.00, all records required by 606 CMR 7.00 must be:

1. legible and dated and signed by the individual making the entry;
2. updated at least annually and whenever any material changes occur.

(c) Attendance records and educator records must be maintained for at least five years.

(d) Children's records must be maintained for at least five years after a child has left the program.

(e) When a child is no longer in care, upon written request of the parent(s), the licensee must provide a copy of the child's records to the parent(s) or any other person the parent(s) identifies.

(5) Staff Records. The licensee must maintain a personnel record for each staff member. The record must include:

(a) documentation that the employee has the qualifications required under 606 CMR 7.09 including, but not limited to, health records, as required by 606 CMR 7.09(11);

(b) copies of licenses, certifications and registrations held, including, but not limited to, motor vehicle operator's license (if the staff member transports children) and EEC educator qualification;

(c) documentation of orientation, training and professional development, as required by 606 CMR 7.09(15)(d) through (f), 7.09(16)(c), 7.09(17)(a), 7.11(1), 7.09(18)(d), and 7.09(19)(b).

(6) Transportation Records. The licensee must maintain documentation that each program owned vehicle or educator's vehicle used for the transportation of children to or from program activities is registered and inspected in accordance with state law, and is insured as required by 606 CMR 7.00.

(7) Children's Records. The licensee must maintain an individual written record for each child that includes:

(a) Information Required at admission, including:

1. a face sheet or sheets, which identifies the child by the following information:
   a. the name, date of admission, date of birth, age at admission, and primary language of the child and parent(s), if other than English;
   b. the parent's (or parents') name(s), home address(es), and telephone number(s);
   c. the parent's (or parents') business address(es) and telephone number(s);
   d. the name, address and telephone number of the person to contact in case of emergency when the parent is unavailable;
   e. a physical description or a current photograph of the child;

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f. the name, address, and phone number of the child's physician or other source of health care,

g. information on allergies, special diets, chronic health conditions and/or any special limitations or concerns, including medications the child is taking at home or school and possible side effects of those medications;

h. the child's anticipated days and times of attendance; and

i. if applicable, the name of the school the child attends.

2. copies of any custody agreements, court orders, and restraining orders pertaining to the child, when provided by the parent;

3. consent for the child's transportation plan, as required by 606 CMR 7.13(2)(e);

4. permission to transport a child to a medical facility and for the child to receive emergency medical treatment, including but not limited to an epinephrine auto-injection for suspected exposure to a life threatening allergen in the event that the parent cannot be reached and when delay would be dangerous to the health of the child;

5. permission to administer basic first aid and/or CPR;

6. a list of any person(s) authorized in writing by the parent to take the child from the program or receive the child at the end of the day;

7. written parental consent for a child to participate in off-site activities.

8. written parental consent for older school age children to leave the program for any reason, including consent for the specific activity, time, and method of transportation, and acknowledgment of parental responsibility for the child once s/he leaves the program;

9. written informed consent for observation of children by anyone other than program staff or the parents of children in the program, if applicable. For observations in which there is no interaction between the child and the observer and no identification of individual children, a general permission may be obtained. When there is interaction between the child and the observer or when individual children are identified to an observer other than parents of children in the program, a specific individual informed consent must be obtained;

10. written consent for children to use an on-site swimming pool;

11. written consent for the use of unanticipated, non-prescription and topical, non-prescription medications, if applicable;

12. written consent for children to sleep in the same room with children of the opposite sex during regular overnight care, if applicable;

13. medical records, including:

a. a physician's, nurse practitioner's, or physician's assistant's certification that the child has been successfully immunized in accordance with the current Department of Public Health's recommended schedules;

b. a written statement from a licensed health care practitioner within one month of admission that indicates that the child has had a complete physical examination within one year prior to admission;

c. a statement signed by a physician or an employee of a health care agency obtained within one month of admission stating that the child has been screened for lead poisoning. Pursuant to Department of Public Health requirements, all children, regardless of risk, must be screened for lead poisoning at least once between the ages of nine and 12 months and annually thereafter at ages two and three. Children must also be screened at age four if they live in a community deemed at high risk for lead poisoning by the Department of Public Health. All providers must comply with the criteria for lead poisoning screening as set forth in 105 CMR 460.050.

14. as appropriate to the child's age and abilities:

a. information about the child's daily schedule, developmental history, sleeping and play habits, favorite toys, accustomed mode of reassurance and comfort;

b. procedures for toilet training of the child, if appropriate; and

c. the child's eating schedule and eating preferences, including for infants, a description of formula preparation.

15. documentation that the parent has been notified regarding his/her right to visit the program unannounced at any time while his/her child is in care, and has received the written information for parents required by 606 CMR 7.08(6).